

An Act

ENROLLED HOUSE
BILL NO. 4275

By: Miller and McCane of the
House

and

Reinhardt of the Senate

An Act relating to mental health; amending 43A O.S. 2021, Section 3-318, which relates to rules and standards for certification of behavioral health case managers, application for certification, fee, titles, and compliance; providing uniformity in rules and standards for certification for behavioral health case managers; amending 43A O.S. 2021, Section 3-326, which relates to certification as peer recovery support specialists, rules, application, fees, titles, and penalties; providing uniformity in rules and standards for certification for peer recovery support specialists; and providing an effective date.

SUBJECT: Mental health

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43A O.S. 2021, Section 3-318, is amended to read as follows:

Section 3-318. A. The Board of Mental Health and Substance Abuse Services shall promulgate rules and standards for certification of behavioral health case managers who are:

1. Employed by the state, a municipality, or county;
2. Employed by behavioral services providers contracting with the state to provide behavioral health services;
3. Employed by organizations certified by the Department of Mental Health and Substance Abuse Services;

4. Employed by a tribe or tribal facility that provides behavioral health services; or

~~4.~~ 5. Employed by an Oklahoma Department of Veterans Affairs or a United States Department of Veterans Affairs facility.

B. Such rules and standards shall address criteria for certification and renewal, including minimum education requirements, examination and supervision requirements, continuing education requirements, and rules of professional conduct.

C. Application for certification as a behavioral health case manager shall be made to the Department of Mental Health and Substance Abuse Services on prescribed forms. The Board, or the Commissioner of Mental Health and Substance Abuse Services upon delegation by the Board, may certify the behavioral health case manager for a period of two (2) years subject to renewal as provided in the rules promulgated by the Board.

D. The Board is authorized to establish an application and renewal fee of no more than One Hundred Dollars (\$100.00) to defray the costs incurred in the certification process.

E. Behavioral health case managers certified by the Board or the Commissioner shall only use the title "certified behavioral health case manager" if employed by the state, a municipality, or county, employed by behavioral services providers contracting with the state to provide behavioral health services, employed by organizations certified by the Department of Mental Health and Substance Abuse Services, employed by a tribe or tribal facility that provides behavioral health services or employed by an Oklahoma Department of Veterans Affairs or a United States Department of Veterans Affairs facility. This section shall not be construed to permit the certified behavioral health case manager to practice any of the following professions or use the following titles unless also licensed or accredited by the appropriate authority: physician, psychologist, clinical social worker, professional counselor, marital and family therapist, behavioral practitioner, or alcohol and drug counselor.

F. Failure to comply with rules and standards promulgated by the Board shall be grounds for revocation, suspension or nonrenewal of certification.

G. No behavioral health case manager shall operate or continue to operate as a behavioral health case manager unless the case manager complies with the rules promulgated by the Board and is certified as required by this section.

SECTION 2. AMENDATORY 43A O.S. 2021, Section 3-326, is amended to read as follows:

Section 3-326. A. The Board of Mental Health and Substance Abuse Services shall promulgate rules for certification of peer recovery support specialists who are:

1. Employed by the state, a municipality, or county;
2. Employed by a behavioral services provider contracting with the state to provide behavioral health services;
3. Employed by a behavioral services provider certified by the Department of Mental Health and Substance Abuse Services. Provided, however, that certification as a peer recovery support specialist pursuant to this subsection shall be limited to providing services within the employer's area of certification;
4. Employed by a tribe or a tribal facility that provides behavioral health services; or
5. Employed by an Oklahoma Department of Veterans Affairs or a United States Department of Veterans Affairs facility.

B. Such rules shall address criteria for certification and renewal, including minimum education requirements, examination and supervision requirements, continuing education requirements, and rules of professional conduct.

C. Application for certification as a peer recovery support specialist shall be made to the Department of Mental Health and Substance Abuse Services on prescribed forms. The Board, or the Commissioner of Mental Health and Substance Abuse Services upon delegation by the Board, may certify the peer recovery support specialist for a period of two (2) years subject to renewal as provided in the rules promulgated by the Board.

D. The Board is authorized to establish an application and renewal fee of no more than One Hundred Dollars (\$100.00) to defray the costs incurred in the certification process.

E. A peer recovery support specialist certified by the Board or the Commissioner shall only use the title "certified peer recovery support specialist" if employed by the state, a municipality, or county, employed by behavioral services providers contracting with or certified by the state to provide behavioral health services, employed by a tribe or tribal facility that provides behavioral health services or employed by an Oklahoma Department of Veterans Affairs or a United States Department of Veterans Affairs facility. This section shall not be construed to permit the certified peer recovery support specialist to practice any of the following professions or use the following titles unless also licensed or accredited by the appropriate authority:

1. Physician;
2. Psychologist;
3. Clinical social worker;
4. Professional counselor;
5. Marital and family therapist;
6. Behavioral practitioner; or
7. Alcohol and drug counselor.

F. No peer recovery support specialist shall operate or continue to operate as a peer recovery support specialist unless the peer recovery support specialist complies with the rules promulgated by the Board and is certified as required by this section.

G. Failure to comply with rules promulgated by the Board shall be grounds for revocation, suspension, or nonrenewal of certification.

SECTION 3. This act shall become effective November 1, 2026.

Passed the House of Representatives the 18th day of February,
2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____